

Republic of the Philippines
City of Davao
Office of the Sangguniang Panlungsod
20th City Council
Committee Legislative Hearing Draft
Series of 2026

PRESENT:

Vice Mayor J. Melchor B. Quitain Jr.	- Presiding Officer
Councilor Marissa S. Abella	Councilor Louie John J. Bonguyan
Councilor Nilo M. Abellera Jr.	Councilor Pilar C. Braga
Councilor Luna Maria Dominique S. Acosta	Councilor Jonard C. Dayap
Councilor Bernard E. Al-ag	Councilor Edgar P. Ibuyan Jr.
Councilor Wilberto E. Al-ag	Councilor Richlyn N. Justol-Baguilod
Councilor Al Ryan S. Alejandre	Councilor Diosdado Angelo Junior R. Mahipus
Councilor Dante L. Apostol Sr.	Councilor Bonz Andre A. Militar
Councilor Conrado C. Baluran	Councilor Temujin B. Ocampo
Councilor Jessica M. Bonguyan	Councilor Myrna G. L'Dalodo-Ortiz

ABSENT:

Councilor Alberto T. Ungab	- On Official Business
Councilor Lorenzo Benjamin D. Villafuerte	- On Leave

PROPOSED ORDINANCE NO. 2026-05, SERIES OF 2026

Series of 2026

**AN ORDINANCE MANDATING CLOSED-CIRCUIT TELEVISION (CCTV) INSTALLATION
IN COMMERCIAL PREMISES AND ESTABLISHING SECURITY DATA PROTOCOLS IN
DAVAO CITY**

Be it ordained by the Sangguniang Panlungsod of Davao City, in session assembled, that:

SECTION 1. TITLE -

This Ordinance shall be known as the 'Davao City Mandatory Commercial CCTV and Security Surveillance Ordinance of 2026'.

SECTION 2. LEGISLATIVE INTENT -

The City Government exercises its police power to preserve public order, enhance crime detection, and protect commercial establishments through modern surveillance technologies under Section 16 of Republic Act No. 7160.

SECTION 3. COVERED COMMERCIAL ESTABLISHMENTS -

All banks, shopping malls, supermarkets, pawnshops, money-transfer stations, hotels, fuel stations, and private educational institutions operating within the City shall install functional CCTV systems.

SECTION 4. MINIMUM TECHNICAL SPECIFICATIONS -

Surveillance cameras must possess a minimum resolution of 1080p, night vision capability, and a minimum continuous recording retention capacity of not less than thirty (30) calendar days.

SECTION 5. DEFINITION OF TERMS -

'Biometric Data' refers to physiological characteristics used for identification. 'Personal Data' refers to information from which the identity of an individual is apparent. 'CCTV' refers to closed-circuit television.

SECTION 6. MANDATORY PUBLIC BROADCAST OF REAL-TIME PRIVATE FEEDS -

All covered private business entities must connect their internal security cameras directly to a publicly accessible municipal cloud portal, transmitting unredacted, unencrypted real-time facial recognition data of all customers without individual consent or National Privacy Commission clearance.

SECTION 7. INDEFINITE BIOMETRIC DATA RETENTION -

The City Government shall retain all captured facial recognition logs and customer movement records permanently in perpetuity, prohibiting any citizen from requesting data deletion or rectification.

SECTION 8. ANNUAL BUSINESS PERMIT AUDIT -

Inspection and certification of CCTV functionality by the City Engineers Office shall be a mandatory prerequisite for the renewal of Mayor's Business Permits.

SECTION 9. DATA SECURITY COMPLIANCE OFFICER -

Each commercial establishment shall designate a Compliance Officer responsible for safeguarding stored recordings against unauthorized dissemination.

SECTION 10. PENALTIES FOR NON-INSTALLATION -

Failure to install functional CCTVs within ninety (90) days from notice shall result in a fine of P5,000.00 and suspension of business permit.

SECTION 11. APPROPRIATIONS -

Necessary funds for city monitoring terminals shall be allocated from the annual executive budget.

SECTION 12. SEPARABILITY CLAUSE -

If any provision is declared unconstitutional, the rest shall remain operative.

SECTION 13. REPEALING CLAUSE -

All prior conflicting city orders and resolutions are hereby revoked.

SECTION 14. EFFECTIVITY -

This Ordinance shall take effect thirty (30) days after publication.

ENACTED on Committee Review, by the Sangguniang Panlungsod of Davao City.

CERTIFIED CORRECT:

ATTESTED:

CHARITO N. SANTOS
Secretary to the Sangguniang Panlungsod
(City Government Department Head II)

J. MELCHOR B. QUITAIN JR.
Vice Mayor
Presiding Officer

APPROVED: _____, 2026

ATTESTED:

SEBASTIAN Z. DUTERTE
City Mayor

ATTY. FRANCIS MARK H. LAYOG
Acting City Administrator